

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 4400-005
SUBJECT: Radiation Safety Program	DATE: October 19, 2021
OPI: Office of Homeland Security	EXPIRATION DATE: October 21, 2026

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1. PURPOSE

- a. This Departmental Regulation (DR) establishes requirements for the United States Department of Agriculture (USDA) Radiation Safety Program (RSP).
- b. It is the policy of USDA to comply with Federal requirements to establish, implement, and support the radiation safety program policy and procedures to continually manage risk to USDA information resources (e.g., information, information systems, and information services).

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR updates and replaces DR 4400-005, *Radiation Safety Program*, dated October 16, 1995.
- b. This policy is effective immediately when published and will remain in effect until superseded or expired.

- c. All USDA Mission Areas, agencies, and staff offices will align processes, procedures, and any applicable policies with this DR within 6 months of the publication date, and will review and update them as needed annually afterwards.

3. SCOPE

This DR applies to all USDA Mission Areas, agencies, staff offices, Federal employees, and any category of non-Federal employee who performs duties in partnership with or on behalf of USDA, such as a consultant, contractor, advisor, volunteer, student, or intern.

4. POLICY

- a. USDA will protect its employees, the public, and the environment from hazards associated with USDA's use of ionizing radiation sources, referred to after this as radiation sources.
- b. USDA will comply with all applicable Federal, state, and local laws and regulations governing the use of using radiation sources.
- c. Mission Areas, agencies, and staff offices will:
 - (1) Develop, document, and disseminate processes and procedures to facilitate the implementation of this DR;
 - (2) Review this DR and related processes and procedures at least annually, updating them as needed. If updated, disseminate them to personnel involved in the acquisition process;
 - (3) Designate a senior management official to manage the implementation of this DR and related procedures; and
 - (4) Develop, document, and implement remediation action for violations of this DR.

5. ROLES AND RESPONSIBILITIES

- a. The Secretary of Agriculture has delegated authority for implementation of the USDA RSP to the Assistant Secretary for Administration (ASA) per [7 Code of Federal Regulations \(CFR\) § 2.24](#).
- b. The ASA will:
 - (1) Advise the Secretary of Agriculture and USDA Mission Area, agency, and staff officials on the oversight and implementation of the RSP, and in planning,

developing, and implementing policies, programs, and systems for the safe acquisition, use, and disposal of radiation sources as they affect the safety and health of USDA employees;

- (2) Ensure that the USDA Radiation Safety Officer (RSO) has authority to immediately stop any activity involving the use of radiation sources, when justified, to maintain radiation safety;
- (3) Appoint the Director of the Office of Homeland Security (OHS), a senior leader with Departmental Administration, to serve as the Departmental representative to the Radiation Safety Committee (RSC), an internal oversight committee comprised of USDA Mission Area, agencies, and staff offices that possess radiation sources;
- (4) Appoint other individuals to serve on the RSC, as needed, to ensure effective operation; and
- (5) Ensure USDA Mission Area, agency, and staff offices compliance with all applicable Federal, state, and local laws and regulations, and USDA RSP requirements.

c. The Director, Office of Homeland Security, will:

- (1) Advise the ASA and USDA Mission Area, agency, and staff officials on the oversight and implementation of the RSP, and in planning, developing, and implementing policies, programs and systems for the safe acquisition, use, and disposal of radiation sources as they affect the safety and health of USDA employees;
- (2) Establish the Radiation Safety Division (RSD) within OHS and ensure its effective operation and implementation of the RSP; and
- (3) Appoint the RSD Division Chief as the USDA RSO.

d. The Heads of Mission Areas, agencies, and staff offices in which radiation sources are used will:

- (1) Ensure Mission Area, agency, and staff office employees comply with all applicable Federal, state, and local laws and regulations, and USDA RSP requirements;
- (2) Recognize the RSO's authority to immediately stop any Mission Area, agency, or staff office activity involving the use of radiation sources, when justified, to maintain radiation safety;
- (3) Establish Mission Area, agency, and staff office policy, guidance, and procedures for implementing the RSP;

- (4) Ensure that Mission Area, agency, and staff office employees who use radiation sources are trained in RSP and their Mission Area, agency, or staff office radiation safety policies and procedures;
 - (5) Ensure that managers of locations where radiation sources are used designate an employee to serve as the Location Radiation Protection Officer (LRPO) to support the RSP; and
 - (6) Nominate qualified individuals to serve as members of the RSC.
- e. The RSC will:
- (1) Establish RSP policies and procedures that ensure compliance with all applicable Federal, state, and local laws and regulations governing the use of radiation sources;
 - (2) Evaluate the implementation and effectiveness of the RSP;
 - (3) Provide guidance to RSD operations, Mission Areas, agencies, and staff office policies and programs, and RSP implementation at locations where radiation sources are used by USDA employees; and
 - (4) Provide advice and assistance to the ASA, OHS Director, Mission Areas, agencies, staff office heads, and staff officials on matters pertaining to radiation safety.
- f. The Division Chief, OHS RSD, will:
- (1) Serve as the USDA RSO and provide advice and assistance on matters pertaining to radiation safety to USDA employees who use radiation sources;
 - (2) Assess and evaluate RSP implementation and compliance at USDA locations where radiation sources are used through reviews of radiation safety information, discussions with USDA employees, and onsite inspections;
 - (3) Review and maintain radiation safety records and other information submitted by USDA employees or developed by the RSD to ensure compliance with RSP policy and procedures and all applicable Federal, state, and local laws and regulations governing the use of radiation sources;
 - (4) Immediately stop any activity involving the use of radiation sources, when justified, to maintain radiation safety;
 - (5) Identify and recommend to the OHS Director and RSC adequate levels of staffing and resources needed for the RSD to implement the RSP;
 - (6) Manage the operations of the RSD; and

- (7) Provide advice and assistance to the ASA, Mission Areas, agencies, staff office heads, and staff officials on matters pertaining to radiation safety.
- g. Mission Area, Agency, and Staff Office LRPOs will:
 - (1) Provide advice and assistance to USDA employees on matters pertaining to radiation safety;
 - (2) Coordinate local radiation safety program activities, such as waste disposal and training; and
 - (3) Assist the OHS RSD as needed.
- h. Mission Areas, Agencies, Staff Office Management, and Supervisory personnel will:
 - (1) Ensure that the employees they supervise comply with the RSP and Mission Area, agency, or staff office rules and regulations for the safe use of radiation sources; and
 - (2) Report accidents, known exposures, and environmental releases to the RSO to identify causes and determine corrective actions to prevent recurrence.
- i. USDA employees will:
 - (1) Use radiation sources in a safe manner that protects themselves, other USDA employees, the public, and the environment from exposure to unacceptable levels of radiation; and
 - (2) Comply with the requirements of the USDA RSP and their Mission Area, agency, or staff office radiation safety program.

6. INQUIRIES

Direct all inquiries regarding this DR to the Office of Homeland Security, Radiation Safety Division, George Washington Carver Center, 5601 Sunnyside Avenue, MS 5510, Beltsville, MD 20705; telephone number 301-504-2440.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ASA	Assistant Secretary for Administration
CFR	Code of Federal Regulations
DR	Departmental Regulation
LRPO	Location Radiation Protection Officer
NRC	Nuclear Regulatory Commission
OHS	Office of Homeland Security
RSD	Radiation Safety Division (OHS Component)
RSC	Radiation Safety Committee
RSO	Radiation Safety Officer
RSP	Radiation Safety Program
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Ionizing Radiation. A form of radiation, which includes alpha particles, beta particles, gamma rays, x-rays, neutrons, high-speed electrons, high-speed protons, and other particles capable of producing ions. Radiation, as used in this document, does not include non-ionizing radiation, such as lasers, radio, and microwaves, or visible, infrared, or ultraviolet light.

Radiation Emitting Equipment. Equipment designed to emit ionizing radiation when energized (such as x-ray equipment).

Radiation Source. A radioactive material or byproduct that is specifically manufactured or obtained for the purpose of using the emitted radiation. Such sources are commonly used in teletherapy or industrial radiography; in various types of industrial gauges, irradiators, and gamma knives; and as power sources for batteries (such as those used in spacecraft). These sources usually consist of known quantity of radioactive material, which is encased in a manmade capsule, sealed between layers of nonradioactive material, or firmly bonded to a nonradioactive substrate to prevent radiation leakage. Other radiation sources include devices such as accelerators and x-ray generators.

Radioactive Material. Matter that spontaneously emits ionizing radiation from the nucleus of its atoms.

APPENDIX C
AUTHORITIES AND REFERENCES

[7 CFR § 2.24](#), *Assistant Secretary for Administration*

[7 CFR § 2.95](#), *Director, Office of Homeland Security*

[10 CFR Part 19](#), *Notices, Instructions, and Reports to Workers: Inspection and Investigations*

[10 CFR Part 20](#), *Standards for Protection Against Radiation*

[10 CFR Part 30](#), *Rules of General Applicability to Domestic Licensing of Byproduct Material*

[10 CFR Part 31](#), *General Domestic Licenses for Byproduct Material*

[10 CFR Part 37](#), *Physical Protection of Category 1 and Category 2 Quantities of Radioactive Material*

49 CFR Subtitle B, Chapter 1, Subchapter C, *Hazardous Materials Regulations*, [Parts 171-177](#)

49 CFR Subtitle B, Chapter 1, Subchapter C, *Hazardous Materials Regulations*, [Part 178](#)

Nuclear Regulatory Commission (NRC), [NRC Regulations Title 10, Code of Federal Regulations](#) website

USDA, [DR 0100-001](#), *Departmental Directives System*, January 4, 2018

USDA, [DR 4410-004](#), *Safety Management Program*, August 3, 2015